

Annex 1: Milestone summaries

Milestone 1

Regulatory body	Ministry of Transport and Communications (MTC)
Title	National Plan for the Development of Broadband in Perú https://www.gob.pe/institucion/mtc/informes-publicaciones/2227526-dgprc-plan-nacional-para-el-desarrollo-de-la-banda-ancha-en-el-peru
Summary	The National Plan for the Development of Broadband in Peru is an important milestone in the country's telecommunications market, due to the way in which the process for its formulation was developed, of which no similar precedents could be identified in Peru. First, it brought together several public entities for its preparation and was submitted for comments to various technical specialists, and companies in the telecommunications sectors as well as other sectors. Second, it took into consideration the comments received from stakeholders to carry out a detailed analyses to identify the barriers that affected the development of broadband. Finally, the Plan proposes several measures to promote broadband in Peru to address both on the supply and demand side. Moreover, the fact that the plan was published almost at the end of the term of a presidential government (July 2011) and was continued by the next government stands out. Thus, the most important proposals were included in what finally became Law 29904, Law for the promotion of broadband and construction of the national fiber optic backbone network, which was approved in 2012.
Date of issue	20.07.2011
Effective date	Not applicable
Publication for comments	Yes/No. The <i>National Plan for the Development of Broadband in Peru</i> has three main chapters: 1. Diagnosis on the Development of Broadband in Peru 2. Barriers that limit broadband development in Peru 3. Vision, goals and policy proposals for the development of broadband in Peru The first two sections were published for comments.
Publication date for comments	First chapter 10.06.2010 Second chapter 05.07.2010
Comments matrix	Yes/No. Although there is no comment matrix, it can be identified as indicated in the Plan itself, that comments were received from 90 people. These 90 people are from: 14 telecommunications companies, 6 ministries, 6 public entities, 8 associations, 4 universities, 8 from other companies and 2 independent consultants.
Other forms of public consultation	Yes/No. Two open workshops were held. First Workshop: 29.04.2010 Second Workshop: 19.07.2010
Link of the publication for comments	First chapter https://portal.mtc.gob.pe/portal/proyecto_banda_ancha/DOC%20TRABAJO%2001%20BANDA%20ANCHA%2010-junio-2010.pdf Second chapter https://portal.mtc.gob.pe/portal/proyecto_banda_ancha/DOC_TRABAJO_02_BANDA_ANCHA_05.07.pdf

	Workshops https://portal.mtc.gob.pe/portal/proyecto_banda_ancha/talleres.html
Background legal norms	1) Supreme Resolution N° 063-2010-PCM 03.03.2010 The Temporary Multisectoral Commission is created in charge of preparing the “National Plan for the Development of Broadband in Peru.” https://www.gob.pe/institucion/mtc/normas-legales/9863-29904 2) Supreme Resolution N° 261-2010-PCM 24.09.2010 The R.S. is modified. 063-2020-PCM, on the creation of the Temporary Multisectoral Commission in charge of preparing the "National Plan for the Development of Broadband in Peru." https://www.gob.pe/institucion/pcm/normas-legales/292478-261-2010-pcm
Legal basis: competencies of the regulatory body	- Consolidated Text of the Telecommunications Law (Supreme Decree No. 013-93-TCC): Telecommunications are provided under the principle of service with equity and that the right to use them extends to the entire national territory, promoting the integration of the most remote places from urban centers. (art. 5). - Consolidated Text of the Telecommunications Law (Supreme Decree No. 013-93-TCC): The Ministry of Transport and Communications sets the telecommunications policy to be followed and controls its results, encouraging the development of the telecommunications and computer services industries, in order to the technological development of the country. (art. 75). <u>Material record:</u> considerations of the norm.
Budget of the regulatory entity	2011: Vice Ministry of Communications, in the budget component: NORMATIVITY, Activity: PROMOTION AND REGULATION OF TELECOMMUNICATIONS SERVICES, Lima, had a budget of US\$ 1,155,244 (S/3,114,537) to finance the activities of development of standards in the 04 DGs that comprise it, among these, the DGRAIC (technical secretary of the multisectoral commission); managing to execute 78.1%. <u>Base:</u> MEF friendly consultation https://apps5.mineco.gob.pe/transparencia/Navegador/default.aspx?y=2011&ap=ActProy
Did the regulation have any impact on the regulator's revenue?	Yes/No The National Plan, although not binding, proposes to incorporate as an additional source of financing for FITELE, 1% of the invoiced income from cable broadcasting and Internet access services.
Impact on infrastructure expansion and investment	Yes/No The National Plan, although not binding, proposes several measures to increase expansion and investment: - Promote the construction of a backbone fiber optic network - Strengthen regulations for the installation of fiber optics in energy and transportation projects - Adapt regulations to reduce regulatory costs and facilitate the provision of services in rural areas - Provide connectivity to public entities, with special emphasis on educational centers and health establishments - Evaluate the use of the 700 MHz and /1.7/2.1 GHz bands for future spectrum contests. - Indirectly, through the following measure: Have a strategic national training plan aimed at developing capabilities and skills in the use of ICT in the population.
Impact on competition	Yes/No The National Plan, although not binding, proposes the following measures: - That OSIPTEL evaluate the adoption of measures such as i) local loop unbundling, and ii) control of mergers and acquisitions in the telecommunications market. - Concession the fiber optic network in the country, under the “carrier of carriers” or neutral operator model.
Impact on efficiency / infrastructure sharing	Yes/No The National Plan, although not binding, proposes the following measures: - That the dark fiber laid and not used by energy concessionaires be obligatorily shared.

	- That the facilities of electrical networks can be used for the laying of fiber optic networks by telecommunications companies. - That the use of highway rights of way is free to install infrastructure and equipment to provide telecommunications services.
Impact on reducing bureaucratic barriers	Yes/No The National Plan, although not binding, proposes the following measures: - Standardization of permit approval procedures to install telecommunications infrastructure in municipalities - Extend the validity of the law that establishes positive administrative silence temporarily - Improve the mechanisms to evaluate and disseminate measurements on non-ionizing radiation, explaining that they do not cause harm to health.
Impact on Quality of Service	Yes/No The National Plan, although not binding, proposes that public entities connect at the highest speed available in each area and at least 2 Mbps by 2016.

Milestone 2

Entities	Private Investment Promotion Agency (PROINVERSION) Ministry of Transport and Communications
Title	Concession for the provision of mobile services in the 1900 MHz Band
Summary	The assignment of the 1900 MHz band was a result of the public auction carried out by PROINVERSION on behalf of the Ministry of Transportation and Communications. At the time of the auction, the State considered that there was room for a fourth mobile operator as there were two large mobile service operators, and the third operator with a small market share. Between 2000 and 2004, Peru had four mobile operators, however, following a business merger, only three remained. As a result of the contest, the entry of the Vietnamese-owned company Viettel was achieved. After being awarded a spectrum band, Viettel helped to increase competition in the market, as well as investments even though it was not part of their obligation, allowed for the installation of telecommunications infrastructure throughout the country.
Publication date	June 1, 2008
Estimated award date	November 28, 2008 (6 months since publication)
Bid award date	January 27, 2011 (2 years 8 months since publication)
Number of times the schedule was modified	16
Consultation round	- November 12, 2008 - 9 comments were made: 5 were queries and 4 were requests. All queries were answered, and regarding the requests, 2 were accepted. Note: There is no information about the companies or people who made the comments
Did the process restart?	Yes/No August 28, 2009
2nd Consultation round	- December 09, 2010 - 17 comments were made: 8 were queries and 9 were requests. 5 of the 8 queries were answered in detail, and regarding the requests, 1 was accepted. Note: There is no information about the companies or people who made the comments
Are established operators allowed to participate?	Yes/No. The restriction is carried out through the regulations that establish radio spectrum caps
Note	The adjudication mechanism is modified (Circular 31). Originally it is the best economic offer. It is changed to the best score where the provision of internet to schools is evaluated
Link	https://www.investinperu.pe/es/app/procesos-concluidos/procesos-por-iniciativa-estatal/banda-c-en-1900-mhz
Background/ Related Standards	1) Ministerial Resolution N° 405-2008-MTC/03 May 29, 2008

	Resolution by which PROINVERSION is in charge of carrying out the public tender to select the operator to which 25MHz of the 1900 MHz Band will be assigned. https://www.gob.pe/institucion/mtc/normas-legales/284317-405-2008-mtc-03 (legal formula) 2) Supreme Resolution N° 067-2008-EF July 18, 2008 Supreme Resolution that ratifies the agreement of the Board of Directors of ProInversión through which the Private Investment Promotion Plan for the concession of the 1900 MHz band was approved https://www.gob.pe/institucion/mef/normas-legales/231828-067-2008-ef
Legal basis / powers	MTC: - Article 123 of the General Regulations of the Telecommunications Law, establishes that the granting of the concession and the corresponding spectrum assignments will be carried out by public tender. - Article 159 of the General Regulations of the Telecommunications Law, establishes that by resolution of the head of the Ministry another entity may be entrusted with the conduct of the public tender and the granting of the bid. PROINVERSION: - Article 37 of Legislative Decree 1224 - which establishes the Framework for the Promotion of Private Investment through Public-Private Associations and Asset Projects - establishes that ProInversión is responsible for designing and concluding the process of promoting private investment through the Associations modality. Public Private and Asset Projects under the scope of its jurisdiction. Likewise, it is the responsibility of the Board of Directors to assume the corresponding powers for the design and conduct of the processes of promoting private investment.
Financial resources of the entity	As of 2011, PROINVERSION had a budget of US\$ 106,289,986 (S/ 286,557,802) for management activities in the Advisory and Support sub-program for the department of Lima. This budget allows the functioning of its bodies, within which is the Investment Promotion Directorate, and the Special Committees, in charge of carrying out the contest. 90% was executed. Source: Budget information from the Peruvian government (friendly consultation) https://apps5.mineco.gob.pe/transparencia/mensual/default.aspx?y=2011&ap=ActProy https://www.investinperu.pe/es/pi/quienes-somos/reglamento-de-organizacion-y-funciones-rof
Impact on revenue	Yes/No US\$ 1,300,000
Impact on infrastructure expansion / investment	Yes/No It seeks the entry of a new private operator, requiring investment obligations consisting of providing the service in 5 provinces (that the company must choose from a list of 30) and providing Internet access in schools. (Coverage Plan is included) The operator will provide free Internet services for 4,025 schools in various locations in the country for ten years. The approximate investment will be US\$ 27,000,000 Promotes expansion of mobile service and closing gaps. Source: https://andina.pe/agencia/noticia-mtc-otorgo-a-viettel-peru-concesion-para-prestacion-servicios-publicos-telecomunicaciones-357046.aspx
Impact on competition	Yes/No As of 2011, the Peruvian market only had 3 mobile phone operators. With this contest, the entry of the fourth operator is achieved, which seeks to generate greater competition.
Impact on efficiency / infrastructure sharing	Yes/No
Impact on reducing bureaucratic barriers	Yes/No

Impact on Quality of Service	Yes/ No
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Milestone 3

Regulatory body	Ministry of Transport and Communications (MTC)
Title	Supreme Decree N° 011-2012-MTC. https://www.gob.pe/institucion/mtc/normas-legales/344616-011-2012-mtc
Summary	Modifies Supreme Decree No. 011-2005-MTC which establishes the Maximum Cap for Radio Spectrum Allocations for Trunked Services, Mobile Telephony and Personal Communications Service. Enables the technological evolution of mobile services, promotes the provision of advanced mobile services, such as Mobile Broadband, and protects the efficient use of radioelectric spectrum, an essential input in the provision of these services. This decree allowed for a better response from the State to technological changes and the development of the telecommunications sector, particularly mobile communications. Based on the international identification of new bands for International Mobile Telecommunications such as the 1.7/2.1 GHz band, and in line with the recommendations of the International Telecommunications Union (ITU) and global trends, the regulator established limits to the allocation of the radio spectrum by group of bands, and not individually; modifying the Supreme Decree No. 011-2005-MTC.
Date of issue	08.30.2012
Effective date	08.30.2012
Publication for comments	Yes/No. Through Ministerial Resolution No 015-2012-MTC/03, the publication of the Working Document called: “Caps on the Allocation of the Radioelectric Spectrum to provide mobile public services” was ordered in the Official Newspaper “<i>El Peruano</i>” and on the MTC website, within a period of 30 calendar days, in order to receive comments from natural persons, public entities, telecommunications operators, others) https://portal.mtc.gob.pe/comunicaciones/regulacion_internacional/regulacion/documentos/2012/RM%20015%202012%20MTC%2003.pdf
Publication date for comments	01.21.2012
Comments matrix	Yes/No.
Other forms of public consultation	Yes/No.
Link of the publication for comments	https://portal.mtc.gob.pe/comunicaciones/regulacion_internacional/regulacion/documentos/2012/RM%20015%202012%20MTC%2003.pdf
Background legal norms	Supreme Decree No. 011-2005-MTC March 31, 2005 The Supreme Decree set the spectrum allocation to each concessionaire of trunked services, mobile telephony and personal communications services at 60 MHz. https://www.gob.pe/institucion/mtc/normas-legales/344873-011-2005-mtc
Legal basis: competencies of the regulatory entity	Consolidated Text of the Telecommunications Law (Supreme Decree No. 013-93-TCC): The radio spectrum is a natural resource of limited dimensions that forms part of the patrimony of the Nation, whose administration, frequency allocation, and control correspond to the Ministry of Transport and Communications - MTC (arts. 57 and 58). Material record: considerations of the norm and statement of reasons.
Budget of the regulatory entity	As of 2012, the Vice Ministry of Communications, in budget category 0047: ACCESS AND PROPER USE OF PUBLIC TELECOMMUNICATIONS SERVICES AND ASSOCIATED INFORMATION, Lima, had a PIM of S/13,912,184 (PIA) to finance the activities of the 04 DGs that make it up, including the DGRAIC (proponent of the norm); managing to execute 27.4%. Source: MEF friendly consultation https://apps5.mineco.gob.pe/transparencia/Navegador/default.aspx?v=2012&ap=Actividad
Did the regulation have any impact on the regulator's revenue?	Yes/No

Impact on infrastructure expansion and investment	Yes/ No Safeguards competition, preventing the hoarding of spectrum without limiting the development of the sector and private investment. Legal basis: Considerations of the norm, Statement of reasons
Impact on competition	Yes/No Prevents spectrum hoarding without limiting the development of the sector and private investment.
Impact on efficiency / infrastructure sharing	Yes/No
Impact on reducing bureaucratic barriers	Yes/No
Impact on Quality of Service	Yes/No

Milestone 4

Entities:	Private Investment Promotion Agency (PROINVERSION) Ministry of Transport and Communications
Title	1.7 GHz Auction-Introduction to 4G. Concession for the provision of public telecommunication services in blocks A and B of the 1710-1770 MHz and 2110-2170 MHz Band, to provide advanced wireless services
Summary	The public contest for the assignment of two blocks of the AWS band (1710-1770 MHz and 2110-2170 MHz) assigned blocks to two mobile operators, enabling the provision of 4G service to begin in Peru. The main characteristic of 4G is the high speed of Internet access compared to previous mobile technologies. This allowed millions of people who did not have fixed Internet connections to finally enjoy this service through their mobile devices. By the time 4G was launched, the number of mobile phone lines had already exceeded the entire population. For this reason, the use of 4G technology was the determining moment for the development of mobile broadband and the massive use of the Internet in Peru.
Publication date	July 13, 2011
Estimated award date	July 22, 2013 (2 years since publication)
Bid award date	July 22, 2013 (2 years since publication)
Number of times the schedule was modified	5
Consultation round	- May 24, 2013 - 61 comments were made Note: There is no information about the companies or people who made the comments
Did the process restart?	Yes/No
2nd Consultation round	Yes/No.
Are established operators allowed to participate?	Yes/No. According to the regulation of spectrum caps
Note	The adjudication mechanism is the best economic offer
Link	https://www.investinperu.pe/es/app/procesos-concluidos/proyecto/5599
Background/ Related Standards	Ministerial Resolution N° 211-2011-MTC/03 March 24, 2011 Resolution by which PROINVERSION is in charge of carrying out the public tender to grant the concession for telecommunications services and assign two blocks of the band 1710 - 1770 MHz y 2110 - 2170 MHz. https://portal.mtc.gob.pe/comunicaciones/regulacion_internacional/regulacion/documentos/pnaf/RR%20M%20211%202011%20MTC%2003.pdf

	(legal formula)
Legal basis / powers	MTC: - Article 123 of the General Regulations of the Telecommunications Law, establishes that the granting of the concession and the corresponding spectrum assignments will be carried out by public tender. - Article 159 of the General Regulations of the Telecommunications Law, establishes that by resolution of the head of the Ministry another entity may be entrusted with the conduct of the public tender and the granting of the bid. PROINVERSION: - Article 37 of Legislative Decree 1224 - which establishes the Framework for the Promotion of Private Investment through Public-Private Associations and Asset Projects - establishes that Proinversión is responsible for designing and concluding the process of promoting private investment through the Associations modality. Public Private and Asset Projects under the scope of its jurisdiction. Likewise, it is the responsibility of the Board of Directors to assume the corresponding powers for the design and conduct of the processes of promoting private investment.
Financial resources of the entity	As of 2013, PROINVERSION had a budget of US\$ 116,464,306 (S/ 324,353,094) for management activities in the Advisory and Support sub-program for the department of Lima. This budget allows the functioning of its bodies, within which is the Investment Promotion Directorate, and the Special Committees, in charge of carrying out the contest. 64% was executed. <u>Source:</u> Budget information from the Peruvian government (friendly consultation) https://apps5.mineco.gob.pe/transparencia/mensual/default.aspx?y=2013&ap=ActProy https://www.investinperu.pe/es/pi/quienes-somos/reglamento-de-organizacion-y-funciones-rof
Impact on revenue	Yes/No US\$ 257,740,176 <u>Source:</u> https://www.investinperu.pe/RepositorioAPS0/0/2/JER/PC_BANDA1710_1770MHZ_Y_2110_2170MHZ/ACTA_D_E_ADJUDICACION_BLOQUE_A.pdf https://www.investinperu.pe/RepositorioAPS0/0/2/JER/PC_BANDA1710_1770MHZ_Y_2110_2170MHZ/ACTA_D_E_ADJUDICACION_BLOQUE_B.pdf
Impact on infrastructure expansión / investment	Yes/No The introduction of 4G mobile broadband in the country is sought and its provision in at least 224 districts and 10 towns of the country (Coverage Plan is included)
Impact on competition	Yes/No
Impact on efficiency / infrastructure sharing	Yes/No
Impact on reducing bureaucratic barriers	Yes/No
Impact on Quality of Service	Yes/No Minimum speeds are required for mobile broadband connections.

Milestone 5

Regulatory body	Ministry of Transport and Communications (MTC)
Title	Supreme Decree No. 014-2013-MTC. Regulation of the Law for the Promotion of Broadband and Construction of the National Backbone Fiber Optic Network https://www.gob.pe/institucion/mtc/normas-legales/9994-014-2013-mtc
Summary	This regulation defined the details of the Law 29904 and introduced institutional modifications in the role of the Ministry of Transport and Communications and the OSIPTEL.

	This regulation enabled the Ministry of Transport and Communications to assume a more active role in the deployment of telecommunications infrastructure, specifically in the construction of fiber optic networks. This infrastructure provided sufficient capacity to the majority of the country's provinces, developing local broadband markets with affordable and fast mobile internet. This norm also made it mandatory for infrastructure sharing in terms of electrical infrastructure, enabling the deployment of telecommunications cables. OSIPTEL was granted the powers to issue mandatory sharing mandates for energy companies. Likewise, it establishes the standardized procedure for installing telecommunications infrastructure, to which all municipalities must adapt. In this way, the executive branch assumes a more predominant role with respect to the subnational levels of government.
Date of issue	04.11.2013
Effective date	05.11.2013
Publication for comments	Yes/No. Ministerial Resolution N° 338-2013-MTC authorized the publication of the regulatory proposal on the MTC website, within 15 days, in order to receive comments from natural persons, public entities, telecommunications operators, others.
Publication date for comments	13.06.2013
Comments matrix	Yes/No. Comments: 16 3 natural persons, 4 national associations, 1 international entity, 2 legal firms, 4 telecommunications operators, 1 public entity, 1 congressman of the republic
Other forms of public consultation	Yes/No.
Link of the publication for comments	https://portal.mtc.gob.pe/comunicaciones/regulacion_internacional/regulacion/documentos/servicios_publicos/Matriz_comentarios_Proyecto_Decreto_Supremo_Reglamento_Ley_29904.pdf
Background legal norms	1) Law 29904 20.07.2012 Law for the Promotion of Broadband and the Construction of the National Backbone Fiber Optic Network https://www.gob.pe/institucion/mtc/normas-legales/9863-29904
Legal basis: competencies of the regulatory body	Law for the Promotion of Broadband and the Construction of the National Backbone Fiber Optic Network (Law 29904) Establishes that its Regulation will be proposed by the Ministry of Transport and Communications, the Ministry of Energy and Mines, the Supervisory Body for Private Investment in Telecommunications - OSIPTEL, and the Supervisory Body for Investment in Energy and Mining - OSINERGMIN (Eighth Final Complementary Provision) <u>Material record</u>: considerations of the norm.
Budget of the regulatory entity	2013: Vice Ministry of Communications, in budget category 0047: ACCESS AND PROPER USE OF PUBLIC TELECOMMUNICATIONS AND ASSOCIATED INFORMATION SERVICES, Lima, had a PIM of US\$ 2,956,872 (S/8,234,888) to finance the activities of the 04 DGs that comprise it, among these, the DGRAIC (proponent of the standard); managing to execute 55.7%. Base: MEF friendly consultation https://apps5.mineco.gob.pe/transparencia/Navegador/default.aspx?y=2013&ap=ActProy
Did the regulation have any impact	Yes/No

on the regulator's revenue?	
Impact on infrastructure expansion and investment	Yes/No The standard regulated the conditions for the design, construction, operation and concession of the National Backbone Fiber Optic Network and Regional Networks. It also defined the characteristics for the implementation of the National State Network.
Impact on competition	Yes/No The standard defined that the National Backbone Fiber Optic Network had to be an open and neutral network, providing services only in the wholesale market of leased lines. These rules were important to promote competition in the retail broadband market
Impact on efficiency / infrastructure sharing	Yes/No The standard provided that electrical infrastructure (towers and poles) must be shared with telecommunications operators. It included a methodology for determining remuneration for energy companies. It also established that OSIPTEL had the power to issue sharing mandates
Impact on reducing bureaucratic barriers	Yes/No The rule established a standard procedure for the authorization of the installation of telecommunications infrastructure. It also defined positive administrative silence.
Impact on Quality of Service	Yes/No The standard defined the conditions for the definition and the advertising of the minimum broadband speed.

Milestone 6

Regulatory body:	Supervisory Body for Private Investment in Telecommunications (OSIPTEL)
Title of the standard:	Portability Conditions, Resolution No. 166-2013-CD-OSIPTEL. Number Portability Regulations
Summary	The standard approved by OSIPTEL constitutes a milestone in the mobile telecommunications market in the country, which has been the support of mobile broadband, because it occurs in a context of growth in the mobile service, but still little competition. Number portability had already been implemented since 2010, through which a user could change operators without losing their number, but gradually the number of ports was decreasing. Therefore, this standard has the objective of reducing switching costs for the user of mobile services and generating greater competition, with two important measures, which are the reduction of the portability period from 7 days to 1 day, and the free portability for users.
Date of issue:	19.12.2013
Effective date:	20.12.2013
Publication for comments	Yes/No. Through Resolution of the Board of Directors 093-2013-CD-OSIPTEL, the pre-publication of the standard was authorized https://www.osiptel.gob.pe/n%C2%BA-093-2013-cd-osiptel/
Publication date for comments	16.07.2013
Comments Matrix	Yes/No. 8 comments: 3 digital services companies (ICONECTIV, C.E.I Consortium, MEDIAFON), 5 telecommunications operators. https://www.osiptel.gob.pe/media/w2bmbffn/matrizcomentarios-res166-2013-cd.pdf
Another form of public consultation	Yes/No.

Link of the publication for comments	https://www.osiptel.gob.pe/n-166-2013-cd-osiptel/ (Legal Formula + Report + Comments Matrix)
Background/ Rules that modify	3) Resolution of the Board of Directors No. 044-2008-CD-OSIPTEL December 29, 2008 Approves the Regulation of Number Portability in Mobile Public Services https://www.gob.pe/institucion/osiptel/normas-legales/1463961-044-2008-cd-osiptel (Legal Formula + Comments Matrix) 4) Law N° 28999 April 4, 2007 Number portability law in mobile services https://www.gob.pe/institucion/mtc/normas-legales/9860-28999 5) Law N° 29956 November 29, 2012 Number portability law in fixed telephone services https://www.gob.pe/institucion/mtc/normas-legales/9861-29956
Legal basis: competencies of the regulatory body	- Article 3 of the Framework Law of the Regulatory Bodies of Private Investment in Public Services, Law No. 27332, which provides that the Supervisory Body for Private Investment in Telecommunications (OSIPTEL) exercises, among others, the regulatory function that includes the power to dictate, in the field and in matters of its competence, regulations, rules that regulate the procedures under its charge, others of a general nature and mandates or other rules of a particular nature referring to interests, obligations or rights of the supervised entities or activities or their users. - Article 2 of Law 28999, Law on Number Portability in Mobile Services, which provides that the technical, economic and administrative conditions required by number portability will be determined by the Ministry of Transportation and Communications and the OSIPTEL, according to its competencies. - Second Transitory Complementary Provision of Law 29956, Law that establishes the right of Number Portability in Fixed Telephony services, which indicates that the OSIPTEL supervises that operating companies guarantee that the information and guidance provided to subscribers before acting is necessary to make a decision or make a properly informed choice, and must provide clear, truthful, detailed and precise information, at a minimum, about the characteristics, the technology used, the modalities, the scope and limitations or restrictions of the service offered.
Budget of the regulatory entity	As of 2013, OSIPTEL, in budget category 010: MARKET EFFICIENCY, had a budget of US\$ 13,333,002 to finance activities aimed at market development, which includes those aimed at guaranteeing free competition, market access, consumer defense and intellectual property, as well as the regulation and supervision of competition relations and the provision of public services in imperfect markets. Part of these activities are developed by the Regulatory Policies and Competition Management - GPRC (proponent of the standard); managing to execute 95%. <u>Source:</u> Budget information from the Peruvian government (friendly consultation) https://apps5.mineco.gob.pe/transparencia/mensual/default.aspx?v=2013&ap=ActProy
Did the regulation have any impact on the regulator's revenue?	Yes/No
Impact on infrastructure expansion / investment	Yes /No
Impact on competition	Yes/No Number Portability was strengthened as a result of this measure, fundamentally because the period to port a number from one telecommunications operator to another was reduced from one week to a single day as well as establishing free portability for users, reducing the switching costs faced by service users. By reducing the limitations to change operators, without losing the telephone number, competition was encouraged in the mobile services market.

Impact on efficiency / infrastructure sharing	Yes/ No
Impact on reducing bureaucratic barriers	Yes/ No
Impact on Quality of Service	Yes/ No
Adaptation of the regulator to technological or market changes	Yes/No OSIPTEL must closely monitor the portability operation mechanism, the technology of the mobile service centers, and the database systems, including the software for their management. Precisely, based on this technical knowledge, he was able to propose reducing the time it takes to do portability, without the operators or the database administrator objecting that this was not possible. <u>Legal basis:</u> Report that supports the standard
Intervening actors of the Regulator (Process of preparation and approval of the standard)	1) Proposed by the technical line body of OSIPTEL (Regulatory Policies and Competition Management), with powers at the national level, made up of a multidisciplinary team of professionals (engineers, lawyers, economists). 2) Evaluated and approved by the Board of Directors.
Information Systems of the regulatory entity	• Rate Information and Registration System (SIRT), 2013 • Mobile Coverage System, 2013 • Stolen Mobile Terminal Management System, 2013 • Subscriber Contract Consultation System, 2013 • Expansion Plan Reporting System, 2013 • Verification and Testing System for the operation of telecommunications services in emergency situations, 2013 • Digital Document Management System (SADD), 2013 • GIS Viewer System and Georeferenced System for Telecommunications Networks, 2013 Source: Strategic Information Technology Plan (PETI) 2014 – 2017 Link: https://cdn.www.gob.pe/uploads/document/file/1202039/Res085-2014-PD_PETI-2014-2017.pdf

Milestone 7

Regulatory body:	Supervisory Body for Private Investment in Telecommunications (OSIPTEL)
Title of the standard:	General Regulation of Quality of Public Telecommunications Services , Resolution No (123-2014-CD-OSIPTEL)
Summary	Prior to this reform, there were no parameters to verify whether what was offered by the operators was really delivered to users and there were also no minimum service quality requirements in terms of mobile internet. This regulation defined for the first time measurement parameters and speed requirements of the Internet access service. This allowed users to have more information about the contracted services, and also allows companies to compete technically and commercially under homogeneous supervisory criteria.
Date of issue:	16.10.2014
Effective date:	01.01.2015
Publication for comments	Yes/No. Through Resolution of the Board of Directors 164-2013-CD-OSIPTEL, the pre-publication of the standard was authorized https://www.osiptel.gob.pe/n%C2%BA-093-2013-cd-osiptel/
Publication date for comments	16.12.2013
Comments Matrix	Yes/No. 8 comments: 6 telecommunications operators, 1 business association (AFIN), 1 international entity (GSM Latin America).

	https://www.osiptel.gob.pe/media/t5qb3oao/matrizcomentarios_res123-2014-cd.pdf
Another form of public consultation	Yes/ No .
Link of the publication for comments	https://www.osiptel.gob.pe/n%C2%BA-123-2014-cd-osiptel/ (Legal Formula + Report + Comments Matrix)
Background/ Rules that modify	1) Resolution of the Board of Directors No. 040-2005-CD-OSIPTTEL June 16, 2005 Approves the Quality Regulation of Public Telecommunications Services https://www.gob.pe/institucion/osiptel/normas-legales/1463899-040-2005-cd-osiptel (Legal Formula + Comments Matrix + statement of reasons) 2) Resolution of the Board of Directors No. 029-2009-CD-OSIPTTEL June 26, 2009 Quality Indicator Supervision Procedures https://www.gob.pe/institucion/osiptel/normas-legales/1463975-029-2009-cd-osiptel
Legal basis: competencies of the regulatory body	- Article 3 of the Framework Law of the Regulatory Bodies of Private Investment in Public Services, Law No. 27332, which provides that the Supervisory Body for Private Investment in Telecommunications (OSIPTTEL) exercises, among others, the regulatory function that includes the power to dictate, in the field and in matters of its competence, regulations, rules that regulate the procedures under its charge, others of a general nature and mandates or other rules of a particular nature referring to interests, obligations or rights of the supervised entities or activities or their users. - Article 76 of the Single Ordered Text of the Telecommunications Law, approved by Supreme Decree No. 013-93-TCC, which establishes that OSIPTTEL is responsible for guaranteeing the quality and efficiency of the services provided by the operating companies.
Budget of the regulatory entity	As of 2014, OSIPTTEL, in budget category 010: MARKET EFFICIENCY, had a budget of US\$ 21,253,539 to finance activities aimed at market development, which includes those aimed at guaranteeing free competition, market access, consumer defense and intellectual property, as well as the regulation and supervision of competition relations and the provision of public services in imperfect markets. Part of these activities are developed by the Inspection and Supervision Management - GFS (proponent of the standard); managing to execute 90%. <u>Source:</u> Budget information from the Peruvian government (friendly consultation) https://apps5.mineco.gob.pe/transparencia/mensual/default.aspx?v=2014&ap=ActProv
Did the regulation have any impact on the regulator's revenue?	Yes/ No
Impact on infrastructure expansion / investment	Yes / No
Impact on competition	Yes/ No
Impact on efficiency / infrastructure sharing	Yes/ No
Impact on reducing bureaucratic barriers	Yes/ No
Impact on Quality of Service	Yes /No

	The standard defines quality indicators, as well as minimum compliance requirements for all telecommunications services. In this regulation, indicators for the Internet access service are introduced for the first time. It is worth mentioning that failure to meet quality goals carries sanctions.
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Milestone 8

Regulatory body	Ministry of Transport and Communications (MTC)
Title	Supreme Decree N° 004-2015-MTC. Regulation of Law No. 30083, Law Establishing Measures to Strengthen Competition in the Mobile Public Services Market https://cdn.www.gob.pe/uploads/document/file/19190/9984-publicacion-del-decreto-supremo-n-004-2015-mtc-en-el-diario-oficial-el-peruano.pdf?v=1700381310
Summary	Law N° 30083, Law Establishing Measures to Strengthen Competition in the Mobile Public Services Market, had the objective of strengthening competition, energizing and expanding the mobile services market through the insertion of the “Rural Mobile Infrastructure Operator” (OIMR), the “Virtual Mobile Operator” (OMR) and the “Passive Infrastructure Operator” (PIP), among other aspects. This Law entrusted the Executive Branch with its regulations. The Ministry of Transport and Communications (MTC), within the framework of its powers, proposed a supreme decree, by virtue of which the aforementioned Law N° 30083 was regulated and the “General Regulatory Framework for the Promotion of the Development of Public Telecommunications Services in Rural Areas and Places of Preferential Social Interest” was modified. (Supreme Decree No. 024-2008-MTC). In this legal norm, the MTC regulated the figure of the “Rural Mobile Infrastructure Operator” (OIMR), with the aim that this model contributes significantly to the expansion of mobile services and the reduction of the infrastructure gap, especially in rural areas and places of preferential social interest, which could not otherwise be served because they are not profitable or have a longer investment recovery period than required by the business objectives. This, in a context in which, as of December 2024, approximately 49,970 population centers had been “covered” out of a total of 98,025, which represents 51% of the country. On the other hand, the MTC also regulated the figure of the “Virtual Mobile Operator” (OMV), as that mobile services concessionaire that has a Registry, provides retail services to end users and does not have radio spectrum assignments. In turn, it is established that to offer final services to users, MVNOs must sign access and interconnection agreements with Rural Mobile Operators, in order to use part of their networks and spectrum, and thus provide their services as new mobile companies with their own brand. It is important to mention the legal recognition of the “Passive Infrastructure Provider” (PIP) in the law, a company that does not provide telecommunications services but rents its infrastructure - specifically mobile sites - to any mobile telecommunications company. In this way, it promotes efficiency and reduces the need for investment in towers, buildings and physical spaces. To that extent, all these new actors would generate greater competition in the mobile voice and data services markets. This was relevant for the country, in a context in which there were 4 mobile operators (although BITEL only started operations in July 2024), in a highly concentrated market (HHI: 4,500)
Date of issue	03.08.2015
Effective date	04.08.2015
Publication for comments	Yes/No
Publication date for comments	05.12.2014
Comments matrix	Yes/No The comment matrix is not public information.
Other forms of public consultation	Yes/No

Link of the publication for comments	https://portal.mtc.gob.pe/comunicaciones/regulacion_internacional/regulacion/documentos/RM-825-2014-MTC-03.pdf
Background legal norms	Law No. 30083, Law Establishing Measures to Strengthen Competition in the Mobile Public Services Market 09/23/2013 This law aims to strengthen competition, energize and expand the market for mobile public services through the insertion of “Virtual mobile operator”, “Rural mobile infrastructure operator” and “Passive Infrastructure Provider”; entrusting the Executive Branch with its regulation. https://www.gob.pe/institucion/mtc/normas-legales/9866-30083 Supreme Decree No. 024-2008-MTC, General Regulatory Framework for the Promotion of the Development of Public Telecommunications Services in Rural Areas and Places of Preference Social Interest 08/16/2008 The purpose of this standard was to promote the development of public telecommunications services through new provisions that facilitate and encourage the expansion of networks in rural areas and/or places of preferential social interest. Considering that the provisions of Law No. 30083, applicable to the Rural Mobile Infrastructure Operator (OIMR), are linked to rural areas and places of preferential social interest, through DS No. 004-2015-MTC, the aforementioned General Regulatory Framework is modified. https://portal.mtc.gob.pe/comunicaciones/regulacion_internacional/regulacion/documentos/servicios_publicos/D.S.%20N%C2%BA%20024-2008-MTC.pdf
Legal basis: competencies of the regulatory body	Political Constitution of Peru The State guides the development of the country, and acts mainly in the areas of promotion of public services and infrastructure (article 58). Consolidated Text of the Telecommunications Law (Supreme Decree No. 013-93-TCC) The Ministry of Transportation and Communications has among its functions to encourage the development of the telecommunications and computer services industries based on telecommunications services in order to the technological development of the country (section 8, article 75). Law No. 29370, Law of Organization and Functions of the Ministry of Transportation and Communications Establishes that the MTC has exclusive jurisdiction over communications infrastructure and services (literal d) article 4). <u>Material record:</u> Supreme Decree
Budget of the regulatory entity	2015: Vice Ministry of Communications, in budget category 0047: ACCESS AND PROPER USE OF PUBLIC TELECOMMUNICATIONS AND ASSOCIATED INFORMATION SERVICES, Lima, had a PIM of S/11,120,733 to finance the activities of the 04 DGs that comprise it, among these, the DGRAIC (proponent of the standard); managing to execute 81.2%. <u>Base:</u> MEF friendly consultation https://apps5.mineco.gob.pe/transparencia/Navegador/default.aspx?y=2024&ap=Actividad
Did the regulation have any impact on the regulator's revenue?	Yes/ No
Impact on infrastructure expansion and investment	Yes/No Through Law No 30083 and its Regulations under analysis, the figure of the Rural Mobile Infrastructure Operator (OIMR) is regulated and is defined as that concessionaire that has its own infrastructure in rural areas or places of preferential social interest, where the Operators Mobile Networks (OMR) are not providing services or do not have operational installed infrastructure.

	Under this scheme, the OIMR is the concessionaire that makes the investment in infrastructure and is then compensated with the charges charged for originating or terminating calls or for the traffic carried from its cells. For its part, the OMR must interconnect to the network infrastructure provided by the OIMR, when requested to do so. In addition, the law recognizes the figure of the Passive Infrastructure Provider (PIP). These types of companies install sites (physical spaces and towers) and share their facilities among many network operators, promoting the expansion of mobile services. Thus, it was expected that these models would contribute significantly to the expansion of mobile services and the reduction of the infrastructure gap, especially in rural areas and places of preferential social interest, which otherwise could not be served because they were not profitable or have a payback period longer than required by the business objectives. Legal basis: explanatory https://cdn.www.gob.pe/uploads/document/file/5443660/9984-exposicion-de-motivos-del-decreto-supremo-n-004-2015-mtc.pdf?v=1700381310
Impact on competition	Yes/No Law No. 30083, which is regulated by DS No. 004-2015-MTC, introduces the figure of the “Virtual Mobile Operator” (OMV) and defines it as that concessionaire of mobile services that has a Virtual Mobile Operator Registry, provides services retailers to end users and does not have radio spectrum allocations. Likewise, it may or may not use its own numbering. In order to offer final services to users, MVNOs must sign access and interconnection agreements with OMRs, in order to use part of their networks and spectrum, and in this way be able to provide their services as new mobile companies with a brand. own. To this extent, MVNOs would allow for greater competition to be generated in the mobile voice and data services markets, being able to obtain significant market shares and generating a greater commercial offer that leads to a reduction in prices and improvement in the quality of the service, for the benefit of the users. Likewise, the figures of the OIMR and the PIP, by offering shared infrastructure in wholesale markets, help promote competition, while reducing investment costs for operators, offering non-discriminatory conditions for access to their facilities. This allows equalizing the conditions between all operators to expand the coverage of their mobile services. This was relevant for the country, in a context in which there were 4 mobile operators (although BITEL only started operations in July 2024), in a highly concentrated market (HHI: 4,500). Legal basis: explanatory memorandum https://cdn.www.gob.pe/uploads/document/file/5443660/9984-exposicion-de-motivos-del-decreto-supremo-n-004-2015-mtc.pdf?v=1700381310
Impact on efficiency / infrastructure sharing	Yes/No This infrastructure sharing model seeks to optimize investments, reduce CAPEX and OPEX and facilitate the entry of operators. <u>Legal basis:</u> explanatory memorandum https://cdn.www.gob.pe/uploads/document/file/5443660/9984-exposicion-de-motivos-del-decreto-supremo-n-004-2015-mtc.pdf?v=1700381310
Impact on reducing bureaucratic barriers	Yes/No
Impact on Quality of Service	Yes/No

Milestone 9

Entities:	Private Investment Promotion Agency (PROINVERSION) Ministry of Transport and Communications
Title:	700 MhZ Auction
Summary	The contest for the assignment of the 700 MHz band allowed companies to have the necessary resources to make more efficient investments in base stations, bringing mobile services to remote and rural areas. Moreover, with at low frequency (less than 1 GHz), this band allowed for a high signal propagation, increasing coverage and quality of service, and reducing the need to invest in towers and antennas. Therefore, it became the perfect complement for the AWS band and others that were later used for 4G.
Publication date	August 13, 2015
Estimated award date	not defined
Bid award date	May 26, 2016 (9 months since publication)
Number of times the schedule was modified	5
Consultation round	- October 7, 2015 - 248 comments were made to the bases Note: There is no information about the companies or people who made the comments
Did the process restart?	Yes/ No
2nd Consultation round	Yes/ No.
Are established operators allowed to participate?	Yes / No.
Note	According to the regulation of spectrum caps The adjudication mechanism is the best economic offer
Link	https://www.investinperu.pe/es/app/procesos-concluidos/proyecto/8100
Background/ Related Standards	Ministerial Resolution N° 337-2014-MTC/03 July 12, 2014 Resolution by which PROINVERSION is in charge of carrying out the public tender to grant the concession for telecommunications services and assign three blocks of the band 698 - 806 MHz. https://www.gob.pe/institucion/mtc/normas-legales/293227-337-2014-mtc-03 (legal formula)
Legal basis / powers	MTC: - Article 123 of the General Regulations of the Telecommunications Law, establishes that the granting of the concession and the corresponding spectrum assignments will be carried out by public tender. - Article 159 of the General Regulations of the Telecommunications Law, establishes that by resolution of the head of the Ministry another entity may be entrusted with the conduct of the public tender and the granting of the bid. PROINVERSION: - Article 37 of Legislative Decree 1224 - which establishes the Framework for the Promotion of Private Investment through Public-Private Associations and Asset Projects - establishes that Proinversión is responsible for designing and concluding the process of promoting private investment through the Associations modality. Public Private and Asset Projects under the scope of its jurisdiction. Likewise, it is the responsibility of the Board of Directors to assume the corresponding powers for the design and conduct of the processes of promoting private investment.
Financial resources of the entity	As of 2016, PROINVERSION had a budget of US\$ 78,254,667 (S/ 265,674,593) for management activities in the Advisory and Support sub-program for the department of Lima. This budget allows the functioning of its bodies, within which is the Investment Promotion Directorate, and the Special Committees, in charge of carrying out the contest. 65% was executed.

	<u>Source:</u> Budget information from the Peruvian government (friendly consultation) https://apps5.mineco.gob.pe/transparencia/mensual/default.aspx?v=2016&ap=ActProy https://www.investinperu.pe/es/pi/quienes-somos/reglamento-de-organizacion-y-funciones-rof
Impact on revenue	Yes/No US\$ 273,309,485 <u>Source:</u> https://www.investinperu.pe/RepositorioAPS0/0/2/JER/PC_BANDA_DE_700_MHZ/Acta_adjudicacion_Banda_700_MHz.pdf
Impact on infrastructure expansion / investment	Yes/No Commitments were required to reach 195 towns that did not have 4G coverage, including border areas. (Coverage Plan is included)
Impact on competition	Yes/No The design of the spectrum band blocks, as well as the bidding process, was designed so that 3 of the 4 operators could have radio spectrum, in such a way as to promote competition in the 4G mobile broadband market.
Impact on efficiency / infrastructure sharing	Yes/No
Impact on reducing bureaucratic barriers	Yes/No
Impact on Quality of Service	Yes/No Minimum speeds are required for mobile broadband connections.

Milestone 10

Regulatory body	Ministry of Transport and Communications (MTC)
Title	Coverage fee regime-CEI (Supreme Decree 003-2018-MTC). Supreme Decree that modifies literal a) of numeral 2 of article 231 of the Single Ordered Text of the General Regulations of the Telecommunications Law, approved by Supreme Decree No. 020-2007-MTC
Summary	This legal norm obliged operators to pay a fee for the use of the radio spectrum, hence establishing a direct incentive mechanism for the deployment of infrastructure in localities that lacked mobile services, only had 2G mobile service, and had low human development indicators and population density. Mobile operators interested in this regime were given the option to choose to accept commitments with MTC to deploy radio base stations within 12 months, provided that in the valuation of these commitments the operator does not exceed 10% of the amount that it was obliged to pay. Likewise, by basing this methodology on the assigned bandwidth, the pre-existing regime was modified, by which the operators that had a greater number of terminals were those that made a higher fee payment; discouraging the massification of mobile services.
Date of issue	23.01.2018
Effective date	24.01.2018
Publication for comments	Yes/No. Ministerial Resolution No. 1162-2017-MTC/01.03 authorized the publication of the regulatory proposal on the MTC website, within 15 days, in order to receive comments from natural persons, public entities, telecommunications operators, others.
Publication date for comments	06.12.2017
Comments matrix	Yes/No. The comment matrix has not been published.
Other forms of public consultation	Yes/No.

Link of the publication for comments	https://portal.mtc.gob.pe/comunicaciones/regulacion_internacional/regulacion/proy%20normativos/RM_1162-2017_MTC-01_03.pdf
Background legal norms	2) Supreme Decree No. 013-93-TCC 26.03.2007 Consolidated Text of the Law of Telecommunications, articles 2, 60, 75. https://www.gob.pe/institucion/mtc/normas-legales/10028-013-1993-tcc 3) Supreme Decree No. 020-2007-MTC 04.07.2007 Consolidated Text of the General Regulations of the Telecommunications Law (article 231 et seq.) https://cdn.www.gob.pe/uploads/document/file/19208/Publicaci%C3%B3n%20del%20Decreto%20Supremo%20N%C2%B0%202020-2007-MTC%20en%20el%20Diario%20Oficial%20El%20Peruano.pdf?v=1694192281 4) Supreme Decree No. 043-2006-MTC 28.12.2006 Regulation of the fee for the use of radio spectrum for public mobile telecommunications services modified by Supreme Decree No. 024-2016-MTC https://www.gob.pe/institucion/mtc/normas-legales/9940-043-2006-mtc
Legal basis: competencies of the regulatory body	Consolidated Text of the Telecommunications Law (Supreme Decree No. 013-93-TCC): i) declares the modernization and development of telecommunications of national interest, within the framework of free competition; Its promotion, administration and control correspond to the State (article 2). ii) establishes that the use of the radio spectrum gives rise to the payment of a fee that must be paid by the owners of radio stations, transmitters and receivers. Likewise, it indicates that the regulations indicate the amounts and payment methods proposed by the MTC, which are approved by Supreme Decree (article 60). iii) it is up to the Ministry of Transport and Communications to propose, for its respective approval, the percentages for the application of radio rights, rates and fees established by Law (literal 14 of article 75). <u>Material record</u>: considerations of the norm and statement of reasons.
Budget of the regulatory entity	As of 2018, the Vice Ministry of Communications, in budget category 0047: ACCESS AND PROPER USE OF PUBLIC TELECOMMUNICATIONS AND ASSOCIATED INFORMATION SERVICES, Lima, had a PIM of S/12,773,818 to finance the activities of the 04 DGs that comprise it, among these, the DGRAIC (proponent of the standard); managing to execute 64.5%. <u>Base</u>: MEF friendly consultation https://apps5.mineco.gob.pe/transparencia/Navegador/default.aspx?v=2018&ap=Actividad
Did the regulation have any impact on the regulator's revenue?	Yes/No The law allowed mobile operators to decide to compensate up to 10% of the mobile fee payment to the MTC for the use of the radio electric spectrum in exchange for infrastructure expansion commitments (3G or higher) or technological renewal from 2G to 4G within the following 12 months that assume the commitment with the Ministry. Depending on the number of operators opting for this regime, the MTC would receive less revenue in its annual budget but an effective deployment of infrastructure to provide mobile services would be achieved. The 10% limit was established to prevent the financing of the activities included in the Objective Budget (OP) by the Vice Ministry of Communications from being put at risk. <u>Legal basis</u>: Statement of reasons https://cdn.www.gob.pe/uploads/document/file/5533295/9902-exposicion-de-motivos-del-decreto-supremo-n-003-2018-mtc.pdf?v=1702190188 The amount that the MTC stopped receiving due to the application of this regime is not public information.
Impact on infrastructure expansion and investment	Yes/No The operators' compliance with this standard allowed the deployment of 55 radio base stations in locations that lacked 3G or higher mobile services or the technological renewal from 2G to 4G in some of these locations. <u>Legal basis</u>:

	https://cdn.www.gob.pe/uploads/document/file/5734312/5092609-exposicion-de-motivos.pdf?v=1706130356
Impact on competition	Yes/ No
Impact on efficiency / infrastructure sharing	Yes/ No
Impact on reducing bureaucratic barriers	Yes/ No
Impact on Quality of Service	Yes/ No

Milestone 11

Entities:	Private Investment Promotion Agency (PROINVERSION) Ministry of Transport and Communications
Title	AWS-3 and 2.3 GHz Auction. Public auction to assign at the national level the frequency ranges 1 750 – 1 780 MHz and 2 150 – 2 180 MHz and 2 300 – 2 330 MHz.
Summary	The assignment of the AWS-E bands (1750-1780 and 2150-2180MHz) and 2.3 GHz (2300-2330 MHz) enabled the expansion of 4G technology across 3,825 rural districts that did not have coverage, substantially reducing the digital divide in the country. This was the result of investment commitments from operators with the government. This auction originally had implementation issues at first, leading to the process being suspended for almost a year (between February 2022 and January 2023). This was due, amongst other factors, to the continuous change of Ministry authorities, the lack of flexibility in the commitments to expand the service to a set of mandatory locations and the demanding OSIPTEL regulation on coverage measurement, which discouraged investment in rural areas . After the process resumed, the conditions of the contest were modified to make the project more attractive to bidders and generate competition. Thus, it was possible for the four established mobile operators to be prequalified; and at the time of the bidding, three of the four operators participated by presenting their offers. This milestone included the assignment of 3 spectrum blocks (2 blocks in the AWS-E band and one block in the 2.3 GHz band), which were tendered independently of each other. However, the three blocks were awarded to a single company (winner of the auction). Thus, BITEL, which for the 1st quarter of 2023 was the operator with the lowest market share (17.15% market share), was able to strengthen its market position due to the increased allocation of radio spectrum, reinforcing competitive pressures.
Publication date	May 14, 2021
Estimated award date	December 7, 2021
Bid award date	June 9, 2023 (2 years 1 month since publication)
Number of times the schedule was modified	6
Consultation round	First part: - July 27, 2021 - 60 comments were made to the bases. All queries were answered. Second part: - October 21, 2021 - 5 comments were made to the bases. All queries were answered. Note: There is no information about the companies or people who made the comments

Did the process restart?	Yes/No It was suspended on February 18, 2022 and restarted on January 04, 2023
2nd Consultation round	- March 31, 2023 - 69 comments were made to the bases. All queries were answered. Note: There is no information about the companies or people who made the comments
Are established operators allowed to participate?	Yes/No. Although spectrum caps were in effect, none of the established operators were limited from participating
Note	After the suspension and subsequent resumption of the bidding, important aspects of the contest rules were modified: • The 30+30 MHz block of the AWS-E band was divided into two 15+15 MHz blocks • The contest was always for investment commitments. However, before the suspension, there was a list of mandatory locations and additionally, the competition factor was for a list of additional locations. When the process resumed, all localities were part of the competition factor, but a minimum score had to be reached.
Link	https://www.investinperu.pe/es/app/DatosProyecto?idAPPProyecto=608
Background/ Related Standards	6) Ministerial Resolution N° 157-2019-MTC/01.03 March 07, 2019 Resolution by which PROINVERSION is in charge of carrying out the public tender to assign at the national level the frequency range 1 750 - 1 780 MHz and 2 150 - 2 180 MHz, and the frequency range 2 300 - 2 330 MHz. https://www.gob.pe/institucion/mtc/normas-legales/283298-157-2019-mtc-01-03 (legal formula) 7) CD PROINVERSIÓN Agreement No. 96-2020-CD February 5, 2020 Through CD PROINVERSIÓN Agreement No. 96-2020-CD dated February 5, 2020, the incorporation of the AWS-3 Band and 2.3 GHz Band Projects to the Private Investment Promotion Process was approved https://www.investinperu.pe/RepositorioAPS0/0/2/jer/ST_BANDA_ESPECTRO_AWS3/Acuerto_CD_96_2_2020_EI_Peruano_07Feb20.pdf
Legal basis / powers	MTC: - Article 123 of the General Regulations of the Telecommunications Law, establishes that the granting of the concession and the corresponding spectrum assignments will be carried out by public tender. - Article 159 of the General Regulations of the Telecommunications Law, establishes that by resolution of the head of the Ministry another entity may be entrusted with the conduct of the public tender and the granting of the bid. PROINVERSION: - Article 12.5 of Legislative Decree 1362 - which regulates the promotion of private investment through public-private partnerships and asset projects - establishes that Proinversión designs, conducts and concludes the process of promoting private investment in projects developed through the Public-Private Partnership and Asset Project modalities, under the scope of its competence, unifying decision-making within the process.
Financial resources of the entity	As of 2023, PROINVERSION had a budget of US\$ 13,999,976 (S/ 52,275,911) for the activity <i>execution of private investment promotion processes in infrastructure and public services projects</i> for the department of Lima. This budget allows the functioning of its bodies, within which is the Investment Promotion Directorate, and the Special Committees, in charge of carrying out the contest. 89% was executed. <u>Source:</u> Budget information from the Peruvian government (friendly consultation) https://apps5.mineco.gob.pe/transparencia/mensual/default.aspx?v=2023&ap=ActProv
Impact on revenue	Yes/No However the investment commitments are about US\$ 680,000,000

	Source: https://www.gob.pe/institucion/mtc/noticias/775957-mas-de-3800-localidades-rurales-accederan-a-servicios-moviles-4g
Impact on infrastructure expansion / investment	Yes/No The winner of the contest committed to serving 3,825 rural locations with 4G coverage. It is the contest with the most investment commitments at the locality level, the Peruvian state has managed to achieve in its history. The approximate investment will be US\$ 680,000,000 Promotes expansion of mobile service and closing gaps. Source: https://www.gob.pe/institucion/mtc/noticias/775957-mas-de-3800-localidades-rurales-accederan-a-servicios-moviles-4g https://gestion.pe/economia/empresas/bitel-gana-la-buena-pro-de-bandas-4g-para-conexion-de-internet-noticia/
Impact on competition	Yes/No Competition improved because the winner of the contest, the BITEL company, was the operator with the lowest market share in the 1st quarter of 2023 (17.15%), so the greater spectrum reinforced its competitive position.
Impact on efficiency / infrastructure sharing	Yes/No
Impact on reducing bureaucratic barriers	Yes/No
Impact on Quality of Service	Yes/No

Milestone 12

Regulatory body	Ministry of Transport and Communications (MTC)
Title	Legislative Decree No. 1599. Legislative Decree to promote technological innovation, reduce the infrastructure gap and access to telecommunications services https://www.gob.pe/institucion/mtc/normas-legales/4992295-1599
Summary	This legislative decree aimed to give the Ministry of Transportation and Communications (MTC) the powers to design new incentive mechanisms for private investment and the deployment of public telecommunications infrastructure and services, mainly in unserved locations. Part of this decree also proposed the inclusion of other provisions to correct limitations and expand the power need to execute telecommunications projects carried out through the National Telecommunications Program (PRONATEL). This decree is part of the Ministry's policies to reduce the gap in access to mobile services. This norm grants the regulator broad powers to establish through lower-level regulations (Supreme Decree and/or Ministerial Resolutions) a legal framework that promotes the implementation of innovative projects, and solutions in the telecommunications sector, eliminating barriers to the deployment of these services. Key topics: -Empowers the MTC to waive or reduce obligations that regulate the operating conditions of these services, to enable (i) projects with geographical scope and fixed duration that promote technological innovation, (ii) an innovative business model in telecommunications services, (iii) a project to provide infrastructure and/or provide telecommunications services in rural areas or areas of preferential social interest, or places that do not have such services. -Empowers the MTC to approve a new special regime that allows operators to pay economic obligations through commitments to deploy infrastructure or provide public telecommunications services (similar to the regime for payment of the fee for the use of the radio spectrum through of coverage commitments). -Empowers the MTC to promote the voluntary conclusion of addendums with the operators that operate the telecommunications networks in charge of PRONATEL, with the purpose of improving the minimum speed conditions of the internet service for schools, police stations and health posts. However, to date the approval of the reglementary norm is pending.

Date of issue	19.12.2023
Effective date	20.12.2023
Publication for comments	Yes/ No
Publication date for comments	Not applicable
Comments matrix	Not applicable
Other forms of public consultation	Yes/ No
Link of the publication for comments	Not applicable
Background legal norms	5) Political Constitution of Peru 30.12.1993. Article 14-A was incorporated into the Constitution by article 2 of Law 31878, published on 09/23/2023. https://busquedas.elperuano.pe/dispositivo/NL/2218362-2 6) Supreme Decree No. 013-93-TCC 26.03.2007 Consolidated Text of the Law of Telecommunications, articles 57, 58, 60, 75. https://www.gob.pe/institucion/mtc/normas-legales/10028-013-1993-tcc 7) Supreme Decree No. 020-2007-MTC 04.07.2007 Consolidated Text of the General Regulations of the Telecommunications Law (article 199, 231 et seq., literal h) annex II. https://cdn.www.gob.pe/uploads/document/file/19208/Publicaci%C3%B3n%20del%20Decreto%20Supremo%20N%C2%B0%20020-2007-MTC%20en%20el%20Diario%20Oficial%20El%20Peruano.pdf?v=1694192281
Legal basis: competencies of the regulatory body	Political Constitution of Peru - The State promotes the use of information and communication technologies throughout the country (section 4 of article 2). - The State guarantees, through public or private investment, access to free internet throughout the national territory, with special emphasis on rural areas, peasant and native communities (article 14-A). - It is the duty of the State to promote the general well-being that is based on justice and the integral and balanced development of the Nation; as well as, acting mainly in the areas of promotion of, among others, public services and infrastructure (articles 44 and 58) Law No. 31880 Law that delegates to the Executive Branch the power to legislate on matters of citizen security, disaster risk management – Global Child, Social Infrastructure, Project Quality and Meritocracy. - The Executive Branch is empowered, in matters of social infrastructure and project quality, to establish measures to promote technological innovation and reduce the gap in access to telecommunications services so that entities in this sector implement differentiated mechanisms of regulation to make the regulatory framework more flexible, grant regulatory exemptions for innovative business model projects and allow the deployment of infrastructure or communications services that contribute to reducing the gap in infrastructure and access to communications services in rural areas and preferential social interest areas. Likewise, establish to optimize the use of regional broadband projects, enabling the exploitation of transport networks that only provide the carrier service for the operation of the access networks of said projects, and increasing speeds for Internet access broadband in public institutions (section 2.3 of article 2) Consolidated Text of the Telecommunications Law (Supreme Decree No. 013-93-TCC): - Declares the modernization and development of telecommunications to be of national interest, within the framework of free competition, and its promotion, administration and control corresponds to the State (article 2). - Telecommunications are provided under the principle of service with equity, and the right to use them extends to the entire national territory, promoting the integration of the most remote places from urban centers (article 5).

	- The functions of the Ministry of Transportation and Communications (MTC), in telecommunications matters, are to prepare and propose the approval of the regulations and plans of the different services contemplated in the Law and to issue resolutions related to them; encourage the development of the telecommunications and computer services industries based on telecommunications services in order to the technological development of the country, and manage the use of the radio spectrum (article 75). Consolidated Text of the General Regulations of the Telecommunications Law (Supreme Decree No. 020-2007-MTC): The State exercises a promoting and facilitating role regarding the development of cutting-edge technologies, promoting, as far as possible, the convergence of services and technologies, with the aim of providing greater benefits to society; Likewise, it promotes the development of Information and Communication Technologies (ICTs), as support for the Global Information Society (articles 7 and 8). <u>Material record:</u> Legislative Decree
Budget of the regulatory entity	2023: Vice Ministry of Communications, in budget category 0047: ACCESS AND PROPER USE OF PUBLIC TELECOMMUNICATIONS AND ASSOCIATED INFORMATION SERVICES, Lima, had a PIM of S/6,333,631 to finance the activities of the 04 DGs that comprise it, among these, the DGPRC (proponent of the standard); managing to execute 83.5%. <u>Base:</u> MEF friendly consultation https://apps5.mineco.gob.pe/transparencia/Navegador/default.aspx?y=2024&ap=Actividad
Did the regulation have any impact on the regulator's revenue?	Yes/ No
Impact on infrastructure expansion and investment	Yes/No The legislative decree could have a significant impact on reducing the gap in access to public telecommunications services in Peru and private investment in the telecommunications sector. In effect, this rule empowers the MTC to reduce or stop applying certain obligations derived from the current legal framework and that regulate the operating conditions of telecommunications services, when a natural or legal person requires it to implement: (i) projects with geographic scope and specific duration that promote technological innovation, (ii) an innovative business model in the public telecommunications services sector, (iii) a project to provide infrastructure and/or provide public telecommunications services in rural areas or areas of preferential social interest, or places that do not have such services. The non-application or exemption of the aforementioned regulations cannot be attributed to the scope of competence of the economic regulator (OSPTTEL), in environmental matters or protection of the rights of native or indigenous communities. In addition, telecommunications operators could apply to MTC to pay a percentage of their debts for "Fee for commercial exploitation of said services" and/or their "contribution to the Telecommunications Investment Fund (FITELE)", through the deployment of telecommunications infrastructure, the technological improvement, or the payment of final telecommunications services for the benefit of the population located in rural areas or areas of preferential social interest. The MTC determines the aforementioned percentage in the regulatory standard. Likewise, it authorizes the MTC to use public resources to finance certain projects carried out by PRONATEL located in the jungle of Peru. <u>Legal basis:</u> https://cdn.www.gob.pe/uploads/document/file/5636466/4992295-d-leg-1599.pdf?v=1704403507
Impact on competition	Yes/ No
Impact on efficiency / infrastructure sharing	Yes/ No

Impact on reducing bureaucratic barriers	Yes/ No
Impact on Quality of Service	Yes/ No

Milestone 13

Regulatory body	Ministry of Transport and Communications (MTC)
Title	Supreme Decree No. 001-2024-MTC. Supreme Decree that modifies Annexes II and V of the Consolidated Text of the General Regulations of the Telecommunications Law, and art. 3 DS N° 003-2018-MTC https://www.gob.pe/institucion/mtc/normas-legales/5092609-001-2024-mtc
Summary	The purpose of this legal norm is to modify the legal framework related to the mechanism for "payment of the fee for the use of the radio spectrum through mobile coverage." This decree supported efforts to reduce the access gap to mobile services. As part of the modifications to the legal framework, new types of telecommunications infrastructure were updated and recognized, enabling their deployment by operators to comply with this regime. This new infrastructure was previously identified by the MTC as a more efficient technical alternatives to provide coverage to smaller towns, which still lack coverage. This legal norm updates the Objective Budget (OP), one of the components of the methodology, with the purpose of meeting the MTC's need to have additional resources to carry out the management, regulation, supervision and inspection of the use of the spectrum radioelectric; as well as providing certainty and predictability to the canon collection formula with the new proposed values of the OP for the period 2024 – 2026. For these purposes, the legal norm modifies Annexes II and V of the Consolidated Text of the General Regulations of the Telecommunications Law (Supreme Decree NI° 020-2007- MTC), through which the methodology and formulas for the determination of the fee for the radio spectrum for mobile services. On the other hand, this legal norm modifies article 3 of Supreme Decree No. 003-2018-MTC, to update the criteria for the preparation of lists of localities, the deadlines for the publication of the list and the supervision of infrastructure deployment, among other topics.
Date of issue	23.01.2024
Effective date	24.01.2024
Publication for comments	Yes/No. Ministerial Resolution N° 1387-2023-MTC/01.03 authorized the publication of the regulatory proposal on the MTC website, within 15 days, in order to receive comments from natural persons, public entities, telecommunications operators, others.
Publication date for comments	01.10.2023
Comments matrix	Yes/No. 08 Comments: Comments: 01 public entity – OSIPTEL, 05 telecommunications operator, 01 natural person, 01 law firm.
Other forms of public consultation	Yes/No.
Link of the publication for comments	https://busquedas.elperuano.pe/dispositivo/NL/2220764-1
8) Supreme Decree No. 013-93-TCC	

Background legal norms	26.03.2007 Consolidated Text of the Law of Telecommunications, articles 57, 58, 60, 75. https://www.gob.pe/institucion/mtc/normas-legales/10028-013-1993-tcc 9) Supreme Decree No. 020-2007-MTC 04.07.2007 Consolidated Text of the General Regulations of the Telecommunications Law (article 199, 231 et seq., literal h) annex II. https://cdn.www.gob.pe/uploads/document/file/19208/Publicaci%C3%B3n%20del%20Decreto%20Supremo%20N%C2%B0%20020-2007-MTC%20en%20el%20Diario%20Oficial%20El%20Peruano.pdf?v=1694192281 10) Law N° 26821 25.06.1997 Organic Law for the sustainable use of natural resources (article 3 and 20). https://www.minam.gob.pe/wp-content/uploads/2017/04/Ley-N%C2%B0-26821.pdf 11) Ministerial Resolution N° 613-2023-MTC/01.03 Modification of the maximum limit for the implementation of the infrastructure expansion coefficient and/or technological improvement of infrastructure (CEI) https://www.gob.pe/institucion/mtc/normas-legales/4245777-0613-2023-mtc-01-03
Legal basis: competencies of the regulatory body	Consolidated Text of the Telecommunications Law (Supreme Decree No. 013-93-TCC): i) Radio spectrum is a natural resource of limited dimensions that is part of the Nation's heritage; whose administration, assignment and control correspond to the Ministry of Transport and Communications, under the conditions established by the Law and its Regulations (articles 57 and 58) ii) Use of the radio spectrum gives rise to the payment of a fee that must be paid by the owners of radio stations, transmitters and receivers. Likewise, it indicates that the regulations indicate the amounts and payment methods proposed by the MTC, which are approved by Supreme Decree (article 60). iii) it is up to the Ministry of Transport and Communications to propose, for its respective approval, the percentages for the application of radio rights, rates and fees established by Law (literal 14 of article 75). Consolidated Text of the General Regulations of the Telecommunications Law (Supreme Decree No. 020-2007-MTC): MTC is responsible for the administration, attribution, assignment, control and, in general, everything that concerns the radio spectrum (article 99). <u>Material record:</u> considerations of the norm and statement of reasons.
Budget of the regulatory entity	2024: Vice Ministry of Communications, in budget category 0047: ACCESS AND PROPER USE OF PUBLIC TELECOMMUNICATIONS AND ASSOCIATED INFORMATION SERVICES, Lima, had a PIM of S/6,333,631 to finance the activities of the 04 DGs that comprise it, among these, the DGPRC (proponent of the standard); managing to execute 37.6% as of 07/05/2024. <u>Base:</u> MEF friendly consultation https://apps5.mineco.gob.pe/transparencia/Navegador/default.aspx?y=2024&ap=Actividad
Did the regulation have any impact on the regulator's revenue?	Yes/No In general terms, updating the methodology may cause the Ministry to receive less income from fees for the use of the radio spectrum, given that by expanding the flexibility of the regime more incentives could be generated for operators to use it more intensively. this mechanism and deploy more infrastructure to replace paying the MTC for this concept However, through this legal norm, one of the components of the methodology is also being modified. In effect, it is the objective budget (OP) factor, with the purpose of meeting the MTC's need to have additional resources to carry out the management, regulation, supervision and inspection of the use of the spectrum radioelectric; as well as providing certainty and predictability to the canon collection formula with the new proposed values of the OP for the period 2024 - 2026. The estimate of the amount that the MTC could stop receiving from the approval of this legal norm is not public information.

	<u>Legal basis:</u> https://cdn.www.gob.pe/uploads/document/file/5734312/5092609-exposicion-de-motivos.pdf?v=1706130356
Impact on infrastructure expansion and investment	Yes/No - Recognition of investments in new models of base stations and infrastructure in general, according to the geography and technical needs of the locations to be served. Thus, the legal standard recognizes investments in both “small cells” and “macrocells” and includes transmission or backhaul equipment, baseband and controller equipment, radiating equipment and antennas. The recognition of "additional" investments is even foreseen, such as a photovoltaic energy system with autonomy of 48 hours, only for locations without electricity. This modification is expected to generate incentives to increase the number of locations with mobile service coverage. - Execution of the deployment of infrastructure and provision of services by mobile operators, in shorter periods than public investment. Indeed, according to this methodology, operators must deploy their infrastructure within a maximum period of 12 months from the moment they assume the commitment to the MTC. <u>Legal basis:</u> https://cdn.www.gob.pe/uploads/document/file/5734312/5092609-exposicion-de-motivos.pdf?v=1706130356
Impact on competition	Yes/No
Impact on efficiency / infrastructure sharing	Yes/No
Impact on reducing bureaucratic barriers	Yes/No
Impact on Quality of Service	Yes/No
Adaptation of the regulator to technological or market changes	Yes/No - Recognition of new models or typologies of telecommunications infrastructure that operators can deploy under this regime, which obey more efficient technical models depending on the geographic location, demographics of the localities that could be served, among other variables. These models consider all technologies in the ecosystem necessary to advance the connectivity agenda: mobile networks, Fixed fiber optic networks and satellite technology. - Greater recognition of the investment in the technological update of base stations that allow localities to migrate from 2G to 4G mobile services. This incentive, in turn, will make it possible for the populations of the beneficiary localities to access the benefits of mobile broadband. In effect, the percentage of technological improvement that operators can use is modified, going from 12.5% to 20% compared to 60%, which is the maximum limit for acceptance of this regime. <u>Legal basis:</u> Considering regulations, Report
Intervening actors of the Regulator (Process of preparation and approval of the standard)	1) Proposed by a technical line body of the MTC (General Directorate of Policies and Regulation in Communications - DGPRC), with national powers, made up of a multidisciplinary team of professionals (electronic engineers, lawyers, economists). 2) Evaluated and approved by the Vice Minister of Communications, where there is also a team of advisors. 3) Endorsed by the Minister of Transport and Communications. 4) Signed and approved by the President of the Republic.

Information Systems of the regulatory entity	• Ellipse System for Radio Frequency Spectrum Management, since 2003 • Broadcasting Services Module and Public Services Registration, since 2006 • Registry of Telecommunications Equipment and Devices, since 2009 • Communications Infrastructure Maps, since 2011 • Web Business Intelligence System for the Vice Ministry of Communications, since 2014 • Documentary Processing System, since 2016 • Communications Infrastructure Maps, since 2011 <u>Source:</u> Digital Government Plan (PGD) 2020 – 2022 Link: https://www.gob.pe/institucion/mtc/informes-publicaciones/426474-plan-de-gobierno-digital-2020-2022
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Milestone 14

Regulatory body	Ministry of Transport and Communications (MTC)
Title	Suprem Decree No. 005-2024-MTC. Supreme Decree that approves the Standard that Regulates the Sharing of Active Infrastructure with Radioelectric spectrum https://www.gob.pe/institucion/mtc/normas-legales/5187213-005-2024-mtc
Summary	The purpose of the Supreme Decree is to regulate access and shared use of infrastructure with radio spectrum in order to expand the coverage of mobile services and improve the provision of services to users. Indeed, according to the recommendations of international technical organizations (ITU, GSMA) and international experience, through this sharing modality, operators can reduce investment and operation costs in the deployment of new networks. For this reason, the Ministry of Transportation and Communications (MTC), in its role as a promoter of access to telecommunications services, introduced the regulation of this figure into the Peruvian legal framework; thus creating new incentives for investment and reducing the digital divide in Peru. Thus, for example, the MTC has established that this regime will be applicable (i) in rural areas to provide 4G or higher mobile services, (ii) in urban areas, to provide 4G or higher mobile services, in places that do not have coverage. of these services. It is important to highlight that this legal norm is issued in a context in which 73% of rural population centers lack mobile coverage and 19% in urban population centers. Likewise, there is a gap in access to 4G, which means that 87% of rural population centers and 54% of urban population centers still lack access to this technology, restricting their possibility of having mobile broadband services. Likewise, this legal norm establishes the principles, conditions and rules that will regulate the sharing of infrastructure, ensuring that constitutionally relevant legal rights such as the efficient use of the radio spectrum, free competition in the market and the protection of user rights are not violated.
Date of issue	10.01.2024
Effective date	10.02.2024
Publication for comments	Yes/No. Ministerial Resolution N° 0558-2023-MTC/01 authorized the publication of the regulatory proposal on the MTC website, within 15 days, in order to receive comments from natural persons, public entities, telecommunications operators, others.
Publication date for comments	07.05.2023
Comments matrix	Yes/No The comment matrix is not public information. However, the statement of reasons reports that they received 11 comments. <u>Material record:</u> statement of reasons https://cdn.www.gob.pe/uploads/document/file/5849956/5187213-exposicion-de-motivos.pdf?v=1713315596
Other forms of public consultation	Yes/No.

Link of the publication for comments	https://busquedas.elperuano.pe/dispositivo/NL/2175429-1
Background legal norms	12) Supreme Decree No. 013-93-TCC 26.03.2007 Consolidated Text of the Law of Telecommunications, articles 57, 58, 60, 75. https://www.gob.pe/institucion/mtc/normas-legales/10028-013-1993-tcc 13) Supreme Decree No. 020-2007-MTC 04.07.2007 Consolidated Text of the General Regulations of the Telecommunications Law (article 199, 231 et seq., literal h) annex II. https://cdn.www.gob.pe/uploads/document/file/19208/Publicaci%C3%B3n%20del%20Decreto%20Supremo%20N%C2%B0%202020-2007-MTC%20en%20el%20Diario%20Oficial%20El%20Peruano.pdf?v=1694192281 14) Legislative Decree No. 702 Declares the development of telecommunications and approve regulations that regulate the Promotion of Private Investment in telecommunications, numeral 18, article 1, Supplementary Chapter I, incorporated by the Second Complementary Provision Modification of Legislative Decree No. 1478 https://busquedas.elperuano.pe/dispositivo/NL/1866156-2
Legal basis: competencies of the regulatory body	Consolidated Text of the Telecommunications Law (Supreme Decree No. 013-93-TCC): Establishes within the functions of the Ministry of Transport and Communications the attribution to encourage the development of telecommunications and service industries computer systems supported by telecommunications services in order to technological development of the country (section 8 of article 75). Law of Organization and Functions of the Ministry of Transport and Communications (Law No. 29370): Ministry has jurisdiction exclusive, among others, in terms of infrastructure and communications services (article 4); Legislative Decree No. 702, which declares the development of telecommunications and approve rules that regulate the Promotion of Private Investment in telecommunications: Establishes as a function of the Ministry of Transport and Communications, standardize and regulate access and shared use of the active telecommunications infrastructure (section 18, article 1, Supplementary Chapter I). Consolidated Text of the General Regulations of the Telecommunications Law (Supreme Decree No. 020-2007-MTC): MTC is responsible for the administration, attribution, assignment, control and, in general, everything that concerns the radio spectrum (article 199). <u>Material record</u>: considerations of the norm and statement of reasons.
Budget of the regulatory entity	2024: Vice Ministry of Communications, in budget category 0047: ACCESS AND PROPER USE OF PUBLIC TELECOMMUNICATIONS AND ASSOCIATED INFORMATION SERVICES, Lima, had a PIM of S/6,333,631 to finance the activities of the 04 DGs that comprise it, among these, the DGPRC (proponent of the standard); managing to execute 37.6% as of 05/07/2024. <u>Base</u>: MEF friendly consultation https://apps5.mineco.gob.pe/transparencia/Navegador/default.aspx?y=2024&ap=Actividad
Did the regulation have any impact on the regulator's revenue?	Yes/No
Impact on infrastructure expansion and investment	Yes/No - This legal norm that approves the sharing of active infrastructure allows for more expansion rapid supply of mobile telecommunications services in areas where the difficulty of network deployment and the low demand for services makes the investment by operators, compared to other solutions for deployment of infrastructure that requires longer implementation time.

	- Likewise, this rule encourages migration towards new technologies and facilitates the deployment of infrastructure telecommunications, which promotes the increase in locations with coverage of these services. <u>Legal basis:</u> https://cdn.www.gob.pe/uploads/document/file/5849955/5187213-decreto-supremo-n-005-2024-mtc.pdf?v=1713315604 https://cdn.www.gob.pe/uploads/document/file/5849956/5187213-exposicion-de-motivos.pdf?v=1713315596
Impact on competition	Yes/ No
Impact on efficiency / infrastructure sharing	Yes/No Under this legal norm, mobile operators can share infrastructure active with radio spectrum under the following conditions: - In rural areas, to provide 4G or higher mobile services - In urban areas, to provide 4G or higher mobile services, in places without coverage for these services. In places where these conditions are met, and 4G or higher mobile public services are provided, it is possible also share active infrastructure with radio spectrum to provide 3G mobile services. The MTC determines the rural and urban areas to be taken into account for the signing of infrastructure sharing agreements with radio spectrum and publishes them on the MTC digital headquarters.
Impact on reducing bureaucratic barriers	Yes/ No
Impact on Quality of Service	Yes/ No